

Court No. - 21

Case :- WRIT - C No. - 26836 of 2020

Petitioner :- Lalita Chauhan

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Shiv Prakash

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Sanjay Kumar Pachori,J.

Heard learned counsel for the petitioner and learned Standing Counsel. Shri Pawan Kumar Mishra holding brief of Shri Pranjal Mehrotra appears for the respondents.

The petitioner is before this Court for a direction to second respondent to decide the representation of the petitioner dated 5.12.2020 with respect to issue the domestic electric connection to the premises in the occupation of the petitioner and for a direction to the second respondent to issue new electric power connection in the name of the petitioner.

Learned counsel for the petitioner states that the house in question is recorded in the name of petitioner's husband. At present the relation between husband and wife are strange and proceeding is on in the family court. The present situation prompted her husband to create all sorts of obstructions in her peaceful life and he succeeded in getting the electricity disconnected so that the petitioner may leave the house. Such situation has impelled the petitioner to approach this Court to invoke the discretionary jurisdiction under Art.226 of the Constitution of India.

Per contra, learned counsel for the respondents submits that full fledged mechanism is provided under the Electricity Act/ Electricity Supply Code for electricity connection and in case any application in this regard is pending consideration, definitely the same shall be processed by the competent authority within stipulated period.

Considering the facts and circumstances of the case, without expressing any opinion on the merits of the issue and with the consent, the writ petition stands **disposed of** asking the second respondent to decide the aforesaid representation of the petitioner in accordance with law preferably within four weeks.

The party shall file computer generated copy of such order downloaded from the official website of High Court Allahabad,

self attested by the petitioner alongwith a self attested identity proof of the said person (preferably Aadhar Card) mentioning the mobile number to which the said Aadhar Card is linked.

The concerned Court/Authority/Official shall verify the authenticity of such computerized copy of the order from the official website of High Court Allahabad and shall make a declaration of such verification in writing.

Order Date :- 12.1.2021

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